Amendment to Idaho Constitution - House Joint Resolution 6

A Joint Resolution proposing an Amendment to Article X of the Constitution of the State of Idaho, by the addition of a new Section 8, Article X, relating to English as the official language of the state of Idaho:

"Shall Article X of the Constitution of the State of Idaho be amended by the addition of a new Section 8, to provide that the English language shall be the official language for the state of Idaho, and to further provide that, except as required by federal law, English shall be used in all public proceedings, public documents, public instruction, and any other public acts of any public institution in the state of Idaho?"

Legislative Council's Statement of Meaning, Purpose, and Result to Be Accomplished

This proposed constitutional amendment would designate English as the official state language. All official speeches, meetings, and other proceedings of state and local governments, such as city council meetings and jury trials, would be conducted in English, and instruction in public schools would be provided in English. All documents of state and local government entities would be published in English. However, the amendment would allow languages other than English to be used when required by federal law.

WHAT YOUR VOTE WILL DO

Yes

A **YES** vote would designate English the official state language of Idaho.

No

A **NO** vote would make no change to Idaho's Constitution, which currently does not designate an official state language.

Statements For The Proposed Amendment

The amendment could encourage non-English speakers to learn English to be able to better participate in public life. This could promote unity and create a stronger sense of community and shared identity. Non-English speakers would still have language assistance for critical government services, because that is required by federal law. The amendment could promote social cohesion without endangering anyone.

The amendment could promote cost-efficient government by limiting the resources spent on communications in languages other than English.

Statement Against The Proposed Amendment

The amendment is unnecessary because state law already makes English the official state language. The existing law is better than the amendment because the existing law is much more detailed. For example, the law allows public schools to teach foreign languages to interested students. The amendment, by requiring that all public instruction be conducted in English, might not allow this.

The amendment could create social division by signaling to non-English speakers that they are unwelcome in the state and their communities.

FULL TEXT OF PROPOSED CONSTITUTIONAL AMENDMENT

Section 8. ENGLISH THE OFFICIAL STATE LANGUAGE. The English language shall be the official language for the state of Idaho. Except as required by federal law, English shall be used in all public proceedings, public documents, public instruction, and any other public acts of any public institution in the state of Idaho.